

**CHAPTER 37.**

An Act to empower local authorities to close streets
to enable them to be used as playgrounds for
children. A.D. 1938.
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[13th July 1938.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present
Parliament assembled, and by the authority of the same,
as follows :—

1.—(1) The council of any county (other than the administrative county of London), metropolitan borough, county borough, borough or urban district, shall have power, for the purpose of enabling any roads within their area in respect of which they are the highway authority to be used as playgrounds for children, to make an order prohibiting or restricting, subject to such exceptions and conditions as to occasional user or otherwise as may be specified in the order, the use of any specified road by vehicles, or by vehicles of any specified class or description, either generally or on particular days or during particular hours :

Power to
prohibit
traffic on
roads to
be used as
playgrounds.

Provided that an order made under this section with respect to any road shall make provision for permitting reasonable access to premises situated on or adjacent to the road.

(2) No order made under this section shall be of any effect unless and until it is confirmed by the Minister of Transport, and the Minister, if he confirms the order, may

A.D. 1938. — confirm it either without modification or subject to such modifications as he thinks fit, but he shall not confirm an order until twenty-eight days at least have elapsed since the making of the order and, before confirming it, shall consider any objections which may have been made to him against the order and, if he thinks fit, may cause a public inquiry to be held.

(3) Any order made under this section may be revoked, varied or amended by an order made in like manner as the original order.

(4) The Minister of Transport may at any time after giving notice in writing to the council by whom an order under this section was made and after holding, if he thinks fit, a public inquiry, revoke, vary or amend the order.

(5) Any person who uses a vehicle, or causes or permits a vehicle to be used, in contravention of an order in force under this section shall be liable on summary conviction to a fine not exceeding five pounds and, in the case of a second or subsequent conviction, to a fine not exceeding ten pounds.

23 & 24
Geo. 5. c. 53.

(6) The power of the Minister of Transport under subsection (6) of section twenty-nine of the Road and Rail Traffic Act, 1933, to make regulations with respect to the making and confirmation of orders under that section shall include power to make regulations for prescribing the procedure to be followed in connection with the making of orders by a council under this section and the confirmation thereof and for prescribing the manner in which the council shall publish notice of the fact that any such order has been made and confirmed and of its effect.

Power to
make bye-
laws with
respect to
roads used
as play-
grounds.

2.—(1) A council by whom an order may be made under the foregoing section, shall have power, in relation to any road as respects which an order is made by them prohibiting or restricting the use of the road by vehicles, or by vehicles of any specified class or description, for the purpose of enabling the road to be used as a playground for children, to make byelaws authorising the use of the road for that purpose, and making provision with respect to the admission of children to the road when used as a playground, and with respect to the safety of children so using the road and their protection

from injury by vehicles using the road for access to premises situated on or adjacent to the road or otherwise, and generally with respect to the proper management of the road when used as a playground as aforesaid. A.D. 1938.
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(2) The Minister of Transport shall be the confirming authority as respects byelaws made under this section.

3.—(1) For the purpose of any inquiry held by the Minister of Transport in pursuance of this Act, the person appointed to hold the inquiry may by summons require any person to attend at such time and place as is specified in the summons to give evidence or to produce any documents in his custody or under his control which relate to any matter in question at the inquiry, and may take evidence on oath, and for that purpose administer oaths, or may, instead of administering an oath, require the person examined to make and subscribe a declaration of the truth of the matter respecting which he is examined : Provisions as to inquiries.

Provided that no person shall be required, in obedience to such a summons, to go more than ten miles from his place of residence unless the necessary expenses of his attendance are paid or tendered to him.

(2) Every person who refuses or wilfully neglects to attend in obedience to a summons issued under this section, or to give evidence, or who wilfully alters, suppresses, conceals, destroys, or refuses to produce any book or other document which he may be required to produce for the purpose of this section, shall be guilty of an offence and liable, on summary conviction, to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months, or to both such fine and such imprisonment.

(3) Where any such inquiry is held, the Minister may make such order as to the payment of the costs incurred by him in connection with the inquiry (including such reasonable sum not exceeding five guineas a day, as he may determine, for the services of any officer engaged in the inquiry) by such party to the inquiry as he may direct, and the Minister may certify the amount of the costs so incurred, and any amount so certified and directed by the Minister to be paid by any party shall be recoverable from that party either as a debt to the Crown or by the Minister summarily as a civil debt.

A.D. 1938.

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Application
to Scotland.

4. This Act shall apply to Scotland subject to the following modifications :—

- (a) the powers conferred by subsection (1) of section one of this Act on the councils therein mentioned shall be exercisable as regards roads in a county by the county council, and as regards roads in a burgh by the town council;
- (b) in subsection (5) of section one of this Act for the words “on summary conviction” there shall be substituted the words “on conviction by a court of summary jurisdiction”;
- (c) for subsection (2) of section two of this Act the following subsection shall be substituted :—

60 & 61 Vict.
c. 38.

“(2) Sections one hundred and eighty-three to one hundred and eighty-seven of the Public Health (Scotland) Act, 1897, shall apply in like manner as they apply to byelaws made under that Act by a local authority to byelaws made under this section by a county or town council, with the substitution of the Minister of Transport for the Board, and any penalty under any such byelaw shall be recoverable on conviction by a court of summary jurisdiction”;

- (d) in section three of this Act for the word “summons” there shall be substituted the word “order”, and the word “summarily” shall be omitted.

Short title
and extent.

5.—(1) This Act may be cited as the Street Playgrounds Act, 1938.

(2) This Act shall not extend to Northern Ireland.

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